

25STCV24668 25STCV24668

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-06-30

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Case Number: 25STCV24668 Hearing Date: June 30, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 30, 2026

Case Name: Rosamond Ranch, LP v. Robison, et al.

Case No.: 25STCV24668

Matter: Motion for Leave to File FAC

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On August 21, 2025, Plaintiffs Rosamond Ranch, LP, Calitex, LLC, Elias Shokrian, and Derek Boisse filed the operative Complaint for (1) legal malpractice, (2) breach of contract, and (3) breach of fiduciary duty.

Plaintiff now seeks leave to file a first amended complaint in order to (a) remove previously dismissed defendants; (b) clarify specific factual allegations regarding the entry of the default judgment in the underlying action; and (c) plead damages with greater specificity by identifying a claim for lost rent in the amount of \$2,226,794.44, and aligning the prayer for relief among the remaining defendants.

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) “[T]here is a strong policy in favor of liberal allowance of amendments.” (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court. (See generally *Weil & Brown*, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶¶ 6:637 et seq.)

The proposed amendments do not alter the foundational facts or introduce entirely new, unexpected causes of action. The clarification of factual details and the specific itemization of damages stem directly from the core malpractice claim.

While Defendants argue that the timeline will be impermissibly squeezed if Plaintiffs' motion for trial preference is subsequently granted, that procedural argument is premature for the purposes of this motion. Standing alone, this case is relatively early in its procedural life cycle relative to the standard trial track. Because the underlying allegations remain consistent and the amendments merely specify damages and clean up the pleadings, denying leave to amend outright would run contrary to California's liberal amendment policy.

The arguments regarding compressed discovery schedules and statutory summary judgment deadlines are properly deferred to, and harmonized at, the upcoming hearing on Plaintiffs' Motion for Trial Preference on July 2, 2026. Accordingly, the motion for leave to amend is granted.

Moving party to give notice.